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# Chapter 2 - Eligibility Requirements

## Guidance

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## A. Who Is Eligible to Adjust Status

The Immigration and Nationality Act (INA) and certain other federal laws provide over forty different ways for aliens to adjust status to lawful permanent residence. Aliens may only adjust under a particular basis if they meet the eligibility requirements for that basis at the time of filing the Application to Register Permanent Residence or Adjust Status ([Form I-485](#)). Eligibility requirements vary, depending on the specific basis for adjustment.<sup>[1]</sup>

### *Immigrant Categories*

Aliens eligible for adjustment of status generally may apply based on one of the following immigrant categories or basis for adjustment:

- Immediate relative of a U.S. citizen;<sup>[2]</sup>
- Other relative of a U.S. citizen or relative of a lawful permanent resident under a family-based preference category;<sup>[3]</sup>
- Person admitted to the United States as a fiancé(e) of a U.S. citizen;
- Widow(er) of a U.S. citizen;
- Violence Against Women Act (VAWA) self-petitioner;
- Alien worker under an employment-based preference category;<sup>[4]</sup>
- Alien investor;
- Special immigrant;<sup>[5]</sup>

- Human trafficking victim;
- Crime victim;
- Alien granted asylum status;
- Alien granted refugee status;
- Person qualifying under certain special programs based on certain public laws;<sup>[6]</sup>
- Diversity Visa program;
- Private immigration bill signed into law;
- Other eligibility under a special program not listed above (for example, Nicaraguan Adjustment and Central American Relief Act (NACARA)<sup>[7]</sup> Section 202);
- Adjustment of status under [INA 245\(i\)](#); or
- Derivative applicant (filing based on a principal applicant).

Specific eligibility requirements for each immigrant category are discussed in the program-specific parts of this volume.

## B. Who is Not Eligible to Adjust Status

Aliens are generally not eligible for adjustment of status if one or more of the following bars to adjustment or grounds of inadmissibility apply. However, adjustment bars do not apply to every type of adjustment pathway. Furthermore, different inadmissibility grounds may apply to different adjustment pathways.

Therefore, applicants may still be able to adjust under certain immigrant categories due to special exceptions or exemptions from the adjustment bars, inadmissibility grounds, or access to program-specific waivers of inadmissibility or other forms of relief.

### 1. Bars to Adjustment

Depending on how an alien entered the United States or if an alien committed a particular act or violation of immigration law, he or she may be barred from adjusting status. With certain exceptions, some aliens ineligible for adjustment of status under INA 245 include any alien who:<sup>[8]</sup>

- Last entered the United States without being admitted or paroled after inspection by an immigration officer;<sup>[9]</sup>
- Last entered the United States as a nonimmigrant crewman;<sup>[10]</sup>
- Is now employed or has ever been employed in the United States without authorization;<sup>[11]</sup>
- Is not in lawful immigration status on the date of filing his or her application;<sup>[12]</sup>

- Has ever failed to continuously maintain a lawful status since entry into the United States, unless his or her failure to maintain status was through no fault of his or her own or for technical reasons;<sup>[13]</sup>
- Was last admitted to the United States in transit without a visa;<sup>[14]</sup>
- Was last admitted to Guam or the Commonwealth of the Northern Mariana Islands (CNMI) as a visitor under the Guam or CNMI Visa Waiver Program and who is not a Canadian citizen;<sup>[15]</sup>
- Was last admitted to the United States as a nonimmigrant visitor without a visa under the Visa Waiver Program;<sup>[16]</sup>
- Is deportable due to involvement in a terrorist activity or group;<sup>[17]</sup>
- Is seeking employment-based adjustment of status and who is not maintaining a lawful nonimmigrant status on the date of filing this application;<sup>[18]</sup>
- Has ever violated the terms of his or her nonimmigrant status;<sup>[19]</sup>
- Is a conditional permanent resident;<sup>[20]</sup> and
- Was admitted as a nonimmigrant fiancé(e), but did not marry the U.S. citizen who filed the petition or any alien who was admitted as the nonimmigrant child of a fiancé(e) whose parent did not marry the U.S. citizen who filed the petition.<sup>[21]</sup>

## 2. Grounds of Inadmissibility

Generally, an adjustment applicant is inadmissible to the United States and ineligible for adjustment of status if one or more of the grounds of inadmissibility apply to him or her.<sup>[22]</sup> However, if the adjustment applicant is eligible for and is granted a waiver of the ground of inadmissibility or another form of relief, the applicant may remain eligible for adjustment.<sup>[23]</sup>

## 3. Other Eligibility Requirements

### *Government Officials and Specialty Workers*

Foreign government officials, representatives to international organizations, treaty traders and treaty investors (A, E, and G nonimmigrants) may have certain rights, privileges, immunities and exemptions not granted to other nonimmigrants. If such a nonimmigrant seeks adjustment of status, he or she must waive those rights, privileges, immunities and exemptions by filing a waiver application (Request for Waiver of Certain Rights, Privileges, Exemptions and Immunities ([Form I-508](#))).

An Australian specialty occupation worker (E-3 nonimmigrant) has no special rights, privileges, immunities or exemptions to waive and therefore is not required to submit the waiver. Although these workers can be classified as a treaty trader,<sup>[24]</sup> the waiver requirement was established prior to the creation of the Australian specialty occupation worker classification.

In addition, any applicant admitted in an A, G, or NATO nonimmigrant status must file an Interagency Record of Request – A, G or NATO Dependent Employment Authorization or Change/Adjustment to/from A, G or NATO Status ([Form I-566](#)) with the Department of State.

Forms I-508 and I-566 may be concurrently filed with the adjustment application.

### *Certain Exchange Visitors*<sup>[25]</sup>

Certain exchange visitors (J-1 and J-2 nonimmigrants)<sup>[26]</sup> admitted to the United States are subject to a 2-year foreign residence requirement.<sup>[27]</sup> These exchange visitors generally must reside and be physically present in the country of their last residence or the country of their nationality for a cumulative total period (in the aggregate) of at least 2 years after the end of their exchange program and after leaving the United States before they can apply for permanent residence. If such exchange visitors do not return to the country of their last residence or country of nationality for at least 2 years, in the aggregate, after the end of their exchange program, they may be ineligible for adjustment of status. However, certain exchange visitors may be eligible for a waiver of the requirement through an Application for Waiver of the Foreign Residence Requirement ([Form I-612](#)).<sup>[28]</sup>

Officers should first adjudicate the waiver request, as denial of the waiver necessarily renders the applicant ineligible for adjustment of status. Officers should not hold adjustment cases while waiting for either the applicant to submit a waiver application or the Department of State to make a recommendation on a waiver application and instead should deny the adjustment application for ineligibility based on the evidence of record.

## Footnotes

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<sup>[^1]</sup> For more information, see Chapter 6, Adjudicative Review [[7 USCIS-PM A.6](#)]. See Part B, 245(a) Adjustment [[7 USCIS-PM B](#)].

<sup>[^2]</sup> Spouses, unmarried children under 21 years of age, and parents (if the U.S. citizen is 21 years of age or older). See [INA 201\(b\)\(2\)](#).

<sup>[^3]</sup> This category includes the following family-based preference immigrant classifications: unmarried sons and daughters, 21 years of age and older, of U.S. citizens; spouses and unmarried children, under 21 years of age, of lawful permanent residents; unmarried sons and daughters, 21 years of age and older, of lawful permanent residents; married sons and daughters of U.S. citizens; and brothers and sisters of U.S. citizens (if the U.S. citizen is 21 years of age or older). See [INA 203\(a\)](#).

<sup>[^4]</sup> This includes priority workers (including aliens with extraordinary ability, outstanding professors and researchers, and certain multinational executives and managers); members of the professions holding advanced degrees or aliens of exceptional ability; or skilled workers, professionals, and other workers. See [INA 203\(b\)](#).

[^5] This includes religious workers, special immigrant juveniles, certain Afghans and Iraqis, certain international broadcasters, certain G-4 international organization employee or family member or NATO-6 employee or family member, certain U.S. armed forces members, Panama Canal Zone employees, certain employees or former employees of the U.S. government abroad, and certain physicians. See [INA 101\(a\)\(27\)](#).

[^6] Some adjustment programs that are otherwise different from general adjustment include: the Cuban Adjustment Act, [Pub. L. 89-732 \(PDF\)](#) (November 2, 1966); the Cuban Adjustment Act for Battered Spouses and Children, Section 1509 of the Victims of Trafficking and Violence Protection Act of 2000 (VTVPA), [Pub. L. 106-386 \(PDF\)](#), 114 Stat. 1464, 1530 (October 28, 2000) and Sections 811, 814, and 823 of the Violence Against Women and Department of Justice Reauthorization Act of 2005 (VAWA 2005), [Pub. L. 109-162 \(PDF\)](#), 119 Stat. 2960, 3057-58 and 3063 (January 5, 2006); dependent status under the Haitian Refugee Immigrant Fairness Act (HRIFA), Division A, Section 902 of [Pub. L. 105-277 \(PDF\)](#), 112 Stat. 2681, 2681-538 (October 21, 1998); dependent status under HRIFA for Battered Spouses and Children, Section 1511 of VTVPA, [Pub. L. 106-386 \(PDF\)](#), 114 Stat. 1464, 1532 (October 28, 2000), Section 1505 of the LIFE Act Amendments, [Pub. L. 106-554 \(PDF\)](#), 114 Stat. 2763, 2753A-326 (December 21, 2000), Sections 811, 814, and 824 of VAWA 2005, [Pub. L. 109-162 \(PDF\)](#), 119 Stat. 2960, 3057-58 and 3063 (January 5, 2005), and [8 CFR 245.15](#); former Soviet Union, Indochinese or Iranian parolees (Lautenberg Parolees), Section 599E of the Foreign Operations, Export Financing, and Related Programs Appropriations Act of 1990, [Pub. L. 101-167 \(PDF\)](#), 103 Stat. 1195, 1263 (November 21, 1989), as amended; and diplomats or high-ranking officials unable to return home, Section 13 of the Act of September 11, 1957, [Pub. L. 85-316 \(PDF\)](#), as amended, [8 CFR 245.3](#), [INA 101\(a\)\(15\)\(A\)\(i\)-\(ii\)](#) and [INA 101\(a\)\(15\)\(G\)\(i\)-\(ii\)](#).

[^7] See Title II of [Pub. L. 105-100 \(PDF\)](#), 111 Stat. 2160, 2193 (November 19, 1997).

[^8] See [INA 245\(a\)-\(k\)](#) for a full list. Some of the adjustment bars listed may not apply to all applicants. For example, certain adjustment bars do not apply to immediate relatives, VAWA-based applicants, certain special immigrants, or employment-based immigrants.

[^9] See [8 CFR 245.1\(b\)\(3\)](#).

[^10] See [INA 245\(c\)\(1\)](#). See [8 CFR 245.1\(b\)\(2\)](#).

[^11] See [INA 245\(c\)\(2\)](#) and [8 CFR 245.1\(b\)\(4\)](#). See [INA 245\(c\)\(8\)](#) and [8 CFR 245.1\(b\)\(10\)](#). Immediate relatives, as defined in [INA 201\(b\)](#), and certain special immigrants are exempt from these bars.

[^12] See [INA 245\(c\)\(2\)](#). See [8 CFR 245.1\(b\)\(5\)](#). Immediate relatives, as defined in [INA 201\(b\)](#), and certain special immigrants are exempt from this bar.

[^13] See [INA 245\(c\)\(2\)](#). See [8 CFR 245.1\(b\)\(6\)](#). Immediate relatives, as defined in [INA 201\(b\)](#), and certain special immigrants are exempt from this bar. For information on fault of the applicant or technical reasons, see [8 CFR 245.1\(d\)\(2\)](#).

[^14] See [8 CFR 245.1\(b\)\(1\)](#).

[^ 15] See [INA 245\(c\)\(4\)](#). See [8 CFR 245.1\(b\)\(7\)](#). Immediate relatives, as defined in [INA 201\(b\)](#), are exempt from this bar.

[^ 16] See [INA 245\(c\)\(4\)](#). See [8 CFR 245.1\(b\)\(8\)](#). Immediate relatives, as defined in [INA 201\(b\)](#), are exempt from this bar.

[^ 17] See [INA 245\(c\)\(6\)](#).

[^ 18] See [INA 245\(c\)\(7\)](#). See [8 CFR 245.1\(b\)\(9\)](#).

[^ 19] See [INA 245\(c\)\(8\)](#). See [8 CFR 245.1\(b\)\(10\)](#). Immediate relatives, as defined in [INA 201\(b\)](#), and certain special immigrants are exempt from this bar.

[^ 20] See [8 CFR 245.1\(c\)\(5\)](#).

[^ 21] See [INA 245\(d\)](#). See [8 CFR 245.1\(c\)\(6\)](#).

[^ 22] See [INA 212](#). See Volume 8, Admissibility [[8 USCIS-PM](#)].

[^ 23] See Volume 9, Waivers and Other Forms of Relief [[9 USCIS-PM](#)].

[^ 24] See [INA 101\(a\)\(15\)\(E\)](#).

[^ 25] See [INA 212\(e\)](#). See [8 CFR 245.1\(c\)\(2\)](#).

[^ 26] See [INA 101\(a\)\(15\)\(J\)](#).

[^ 27] See [INA 212\(e\)](#). See [8 CFR 245.1\(c\)\(2\)](#). Even when the J-1 nonimmigrant visa is obtained through fraud, the alien may still be subject to the foreign residency requirement. See *Espejo v. INS*, 311 F.3d 976 (9th Cir. 2002), and [Matter of Park \(PDF\)](#), 15 I&N 472 (BIA 1975). The foreign residence requirement does not apply to a J-2 spouse or child of a J-1 nonimmigrant who naturalized under the Military Accessions Vital to the National Interest (MAVNI) program. See Volume 12, Citizenship and Naturalization, Part I, Military Members and their Families, Chapter 3, Military Service during Hostilities (INA 329), Section H, Military Accessions Vital to National Interest Program, Subsection 3, Other Factors to Consider [[12 USCIS-PM I.3\(H\)\(3\)](#)].

[^ 28] Some waivers do not involve the filing of a form or fee, such as waivers based on requests by a U.S. government agency or state department of public health, or based on an official statement by the alien's country that it does not object to waiving the 2-year foreign residence requirement.

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